

Sunil Kumar Gupta — pending new-connection application to be decided in law

High Court of Judicature at Allahabad · Division Bench · 28 April 2017 · WRIT - C No. - 17973 of 2017 · **Writ disposed; pending connection application to be decided in law.**

HEADNOTE

Mandamus for a new electric connection. The petitioner could not show that his application had reached the Executive Engineer. Without entering the merits, the Court disposed of the writ hoping that if the application was pending it would be dealt with and decided in accordance with law within the timeframe under the Electricity Act, 2003 read with the Electricity Supply Code, 2005. A later order corrected the shop number from 34-B to 74-B.

FACTUAL SUMMARY

Sunil Kumar Gupta sought a mandamus commanding the respondents to issue an electric connection to his shop at 74-B, Vivekpuri (Maya Market), Vishwa Bank Barra, Kanpur Nagar — the shop number later being corrected from 34-B. He produced an application annexed to the writ petition, but nothing on the record showed that it had ever reached the office of the Executive Engineer, Electric Sub Station, Barra. Counsel stated that a copy had been received there, and relied on Seema Mansoor for the mutual obligations of consumer and licensee.

HOLDING-UNITS

INTERPLAY · EA2003

new-connection-application

HOLDING

Without entering the merits of a mandamus for a new electric connection, if the consumer's application has reached and is pending before the Executive Engineer, it is to be dealt with and decided in accordance with law within the timeframe provided under the Electricity Act, 2003 read with the Electricity Supply Code, 2005. ¶ 1

FLAG Order invokes EA 2003 and Supply Code 2005 timeframes without naming a section or clause.

PRINCIPLE TAGS

relegate-to-statutory-remedy Mandamus for a new electric connection. The petitioner could not show that his application had reached the Executive Engineer.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S APPLICATION HAD IN FACT BEEN RECEIVED IN THE OFFICE OF THE EXECUTIVE ENGINEER

The record did not show receipt; the Court proceeded only on counsel's statement and a conditional direction. ¶ 1

NOT DECIDED — WHETHER AN ELECTRIC CONNECTION WAS TO BE GRANTED TO THE SHOP

The Court expressly declined to enter the merits. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i> 2014 LawSuit (All) 1860			1	Referred

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.